

OFFER TO PURCHASE

New development OTP

Buyer Information

Full name	Development Buyer (Pty) Ltd
ID / registration number	2026/123456/07
Email	buyer.development@example.com
Telephone	+27 82 000 2701
Capacity	Purchaser represented by authorised signatory

Developer / Seller Information

Full name	Phase 27 Developer (Pty) Ltd
ID / registration number	2026/654321/07
Email	sales@phase27developer.example
Telephone	+27 82 000 2702
Capacity	Developer represented by authorised signatory

Property Information

Property	Unit 1402, Phase 27 Heights
Title / unit details	Sectional title development unit
Purchase price	R 3 150 000 VAT inclusive
Deposit	R 157 500 payable to trust
Finance type	Bond finance
Offer expiry	17:00 on the fifth business day after signature

Commercial Terms

Commission

The mandate commission applies for this route.

Buyer Cost Obligations

Known, estimated and pending buyer costs are shown before signature. Pending or estimated items stay visible until the appointed professional or authority confirms the final amount.

Cost	Status	Amount	Responsibility / timing
Development levy estimate	Estimated	R 2 200	Buyer; From registration or project schedule
Utility connection charges	Estimated	R 14 500	Buyer; Project schedule or on demand
Buyer transfer-cost quote or invoice	Pending	Pending	Buyer; On conveyancer demand
Transfer duty or VAT treatment	Pending	Pending	Buyer; Before lodgement

Matter attorney cost quote status: pending_upload

Transfer attorney: Phase 27 Transfer Attorneys

P1 initials

DEV initials

CON initials

AGT initials

Legal Clauses

Section 3. Definitions

DEFINITIONS

In this Offer to Purchase, the defined terms include Agreement, Agent, Conveyancer, Deposit, Guarantees, Occupation Date, Purchase Price, Property, Purchaser, Seller, Suspensive Conditions, VAT and Compliance Certificates. Route-specific definitions are included only in the applicable resale or new-development section.

Section 4. Parties

PARTIES

Purchaser: Development Buyer (Pty) Ltd
Purchaser ID / Registration: 2026/123456/07
Purchaser Email: buyer.development@example.com
Purchaser Telephone: +27 82 000 2701

Developer / Seller: Phase 27 Developer (Pty) Ltd
Developer Registration Number: 2026/654321/07

Agency: Arch9 Realty
Agent: Alex Agent
Agent FFC Number: FFC-PHASE27

Section 5. Development Unit

DEVELOPMENT UNIT

Development: To be completed
Section / Unit Number: To be completed
Sectional Plan Status: To be completed
Participation Quota: To be completed
Parking Bay: To be completed
Garage Allocation: To be completed

The unit, exclusive-use areas and appurtenant rights are recorded subject to the development, sectional-plan and body-corporate documents applicable to the new-development route.

Section 6. Purchase Price and Deposit

PURCHASE PRICE AND DEPOSIT

Purchase Price: R 3 150 000 VAT inclusive
Purchase Price in Words: Three million one hundred and fifty thousand rand VAT inclusive
Deposit: R 157 500 payable to trust
Deposit Due Date: Within 3 business days after acceptance
Trust Account Recipient: Phase 27 Transfer Attorneys trust account

The purchase price and deposit are those recorded above. Any deposit must be paid only to the approved trust account recipient recorded for this transaction.

Section 7. VAT Treatment

VAT TREATMENT

VAT-Inclusive Purchase Price: R 3 150 000 VAT inclusive

The VAT treatment for a new-development OTP must be rendered from the approved development setup and transaction offer terms.

Section 8. Finance and Suspensive Conditions

FINANCE AND SUSPENSIVE CONDITIONS

Finance Type: Bond finance
Bond Amount: R 2 520 000
Bond Approval Deadline: 21 days after acceptance
Cash Contribution: R 630 000
Cash Proof Deadline: 7 days after acceptance
Guarantee Delivery Deadline: 14 days after bond approval
Guarantee Delivery Period: 14 days
Irrevocable Offer Expiry: 17:00 on the fifth business day after signature
Structured Conditions: Subject to bond approval and standard transfer requirements

The finance route and suspensive conditions recorded above govern whether the offer remains subject to fulfilment, waiver or lapse. Structured conditions must be rendered from the approved condition records, not from free-text buyer onboarding notes.

P1 initials

DEV initials

CON initials

AGT initials

Section 9. Handover and Snagging

HANDOVER AND SNAGGING

Anticipated Occupation / Handover Date: To be completed

Snagging Period: To be completed

Contractor: To be completed

NHBRC Certificate Number: To be completed

Development handover, inspection, snagging and defect processes are dealt with under the new-development route and must align with the approved development documents.

Section 10. Development Compliance and Body Corporate

DEVELOPMENT COMPLIANCE AND BODY CORPORATE

Body Corporate: To be completed

Rules Annexure: To be completed

Estimated Levy: R 2 200 per month estimated

Estimated Rates: To be completed

Utility Connection Charges: R 14 500 estimated

Compliance Certificate Schedule: To be completed

Body-corporate rules, levies, rates, utility charges and development compliance documents must be rendered from development setup and unit records.

Section 11. Transfer and Conveyancer

TRANSFER AND CONVEYANCER

Transfer Attorney / Conveyancer: Phase 27 Transfer Attorneys

Transfer Contact Person: To be completed

Transfer Contact Email: To be completed

Transfer Contact Telephone: To be completed

Trust Account Recipient: Phase 27 Transfer Attorneys trust account

Guarantee Delivery Deadline: 14 days after bond approval

Guarantee Delivery Period: 14 days

Matter Attorney Cost Quote Status: pending_upload

Transfer administration, guarantee delivery and deposit/trust-account handling must follow the appointed transfer attorney or conveyancer assignment.

Section 12. Buyer Cost Obligations

BUYER COST OBLIGATIONS

Buyer Cost Obligations: Buyer transfer-cost quote or invoice - pending; Transfer duty or VAT treatment - pending; Development levy estimate - estimated - R 2 200;

Utility connection charges - estimated - R 14 500

Pending Cost Obligations: Buyer transfer-cost quote or invoice - pending; Transfer duty or VAT treatment - pending

Matter Attorney Cost Quote Status: pending_upload

The Purchaser is responsible for the buyer cost obligations recorded in the structured schedule for this transaction, including any transfer costs, transfer duty, tax-related charges, rates or levy apportionments, scheme or community charges, and other route-specific charges marked as payable by the Purchaser.

Each obligation must render as known, estimated, pending or not applicable. An estimated or pending amount is not omitted merely because the final amount is unavailable at signature. It remains payable once confirmed by the appointed conveyancer, municipality, scheme managing body, homeowners association, developer, utility provider, SARS or other competent authority for the route.

Transaction attorney cost quotes or statements are matter-level records supplied through Phase 27 Transfer Attorneys and must remain separate from public attorney-lead quote workflows. A final statement or revised quote supersedes an earlier estimate only to the extent that the later statement identifies the updated charge.

Section 13. Agency Commission

AGENCY COMMISSION

Agency: Arch9 Realty

Agent: Alex Agent

Agent FFC Number: FFC-PHASE27

Gross Commission Amount: 157500

Mandate Commission Snapshot: 5%

The mandate commission applies for this route.

Section 14. Special Conditions and Annexures

SPECIAL CONDITIONS AND ANNEXURES

Special Conditions: To be completed

Annexures: To be completed

P1 initials

DEV initials

CON initials

AGT initials

Section 15. POPIA and FICA

POPIA AND FICA

The Purchaser consents to the lawful processing and sharing of personal information reasonably required for offer administration, FICA, transfer, finance, compliance, signing and transaction records.

Purchaser: Development Buyer (Pty) Ltd

Section 16. Offer validity and acceptance

This offer remains open for acceptance until the expiry date recorded in the property information. Acceptance must be communicated in writing and signed by the authorised party before expiry.

Section 17. Occupation and possession

Occupation, possession and any occupational consideration are governed by the dates and amounts recorded in the structured terms. Risk and benefit do not pass merely because occupation is granted unless this agreement expressly says so.

Section 18. Risk and benefit

Risk in the property remains with the seller until the transfer date unless a route-specific clause provides otherwise. Each party must preserve the property and transaction records required for transfer.

Section 19. Compliance certificates

The seller must provide the compliance certificates required by law, municipal authority, body corporate rules or this agreement. The purchaser may not be required to accept transfer without the certificates required for the applicable route.

Section 20. Disclosure and warranties

The developer warrants only those matters expressly stated in this agreement and the approved development disclosure documents. The purchaser acknowledges that development specifications, levies and occupation dates may be subject to the approved development programme.

Section 21. Fixtures and exclusions

Fixtures, fittings, appliances and exclusions are only included if recorded in the structured property terms or annexures. No verbal assurance varies the written included or excluded item schedule.

Section 22. Breach and remedies

If either party breaches this agreement and fails to remedy the breach after written notice, the aggrieved party may pursue the remedies available in law and under this agreement, including cancellation or specific performance where applicable.

Section 23. Notices and domicile

The parties choose the physical and electronic addresses recorded in the transaction records for notices. A notice sent to the recorded address is treated as validly delivered unless a party has given written notice of a changed address.

Section 24. POPIA and FICA

The parties consent to the processing of personal information required for FICA, transfer, bond, agency, conveyancing, compliance and signature purposes. Information may be shared only with transaction participants who require it for the matter.

Section 25. Annexures

All annexures referenced in this agreement form part of the agreement once identified and signed or initialled where required. If an annexure conflicts with a typed special condition, the stricter signed condition applies unless expressly varied.

Section 26. Signing counterparts

This agreement may be signed in counterparts and by electronic signature where the signing workflow records signer identity, role, date, document version and completion evidence.

Section 27. Initials on every page

Each required signatory must initial every page. Initials are evidence that the party has had sight of the page but do not replace the signature required on the signature page.

Section 28. Route-specific special conditions

New-development special conditions apply only to the development unit, developer obligations, estimated levies, utility connection charges, snagging and handover arrangements recorded for this route.

Section 29. Costs pending attorney quote

Where transfer costs, duty, rates clearance, levy clearance or attorney charges are pending, the purchaser remains responsible for the buyer cost obligations recorded as pending until the matter attorney quote or final statement replaces the estimate.

Section 30. Final statement handling

The matter attorney may issue a final statement once charges are known. Any previous quote or estimate is superseded only to the extent that the final statement identifies the updated charge.

P1 initials

DEV initials

CON initials

AGT initials

Signatures, Dates And Initials

Initials are required on every page. Signature and date boxes are role scoped for this OTP route.
Initial markers every page: purchaser_1 initials; developer_authorized_signatory initials; contractor_authorized_signatory initials; agent initials

Signer role	Signature	Witness 1	Witness 2	Date
Purchaser	Signature field	Witness 1	Witness 2	Date field
Developer authorised signatory	Signature field	Witness 1	Witness 2	Date field
Contractor authorised signatory	Signature field	Witness 1	Witness 2	Date field
Agent	Signature field	Witness 1	Witness 2	Date field

Initials are shown in the footer on every page for each required role.